UNITED STATES DISTRICT COURT
UNITED STATES DISTRICT COURT DISTRICT OF PUERTO RICO
DISTRICT OF PUERTO RICO

ADA MERCEDES CONDE VIDAL and IVONNE ÁLVAREZ VÉLEZ; MARITZA LÓPEZ AVILÉS and IRIS DELIA RIVERA RIVERA; JOSÉ A. TORRUELLAS IGLESIAS and THOMAS J. ROBINSON; ZULMA OLIVERAS VEGA and YOLANDA ARROYO PIZARRO; JOHANNE VÉLEZ GARCÍA and FAVIOLA MELÉNDEZ RODRÍGUEZ; and PUERTO RICO PARA TOD@S,

Plaintiffs,

v.

ALEJANDRO J. GARCÍA PADILLA, in his official capacity as Governor of the Commonwealth of Puerto Rico; ANA RIUS ARMENDARIZ, in her official capacity as Secretary of the Health Department of the Commonwealth of Puerto Rico; WANDA LLOVET DIAZ, in her official capacity as Director of the Commonwealth of Puerto Rico Registrar of Vital Records; and MELBA ACOSTA FEBO, in her official capacity as Director of the Treasury in Puerto Rico,

Defendants.

No. 3:14-cv-01253-PG

AMENDED COMPLAINT FOR INJUNCTIVE AND DECLARATORY RELIEF

No. 3:14-cv-01253

AMENDED COMPLAINT FOR INJUNCTIVE AND DECLARATORY RELIEF

Plaintiffs Ada Mercedes Conde Vidal and Ivonne Álvarez Vélez, by and through their attorney, and Plaintiffs Maritza López Avilés and Iris Delia Rivera Rivera, José A. Torruellas Iglesias and Thomas J. Robinson; Zulma Oliveras Vega and Yolanda Arroyo Pizarro; Johanne Vélez García and Faviola Meléndez Rodríguez; and Puerto Rico Para Tod@s, an organization (collectively "Plaintiffs"), by and through their attorneys, file this Amended Complaint against Defendants Alejandro J. García Padilla, Ana Rius Armendariz, Wanda Llovet Diaz, and Melba Acosta Febo (collectively "Defendants"), and allege as follows:

INTRODUCTION

1. Plaintiffs, all residents of the Commonwealth of Puerto Rico ("Commonwealth" or "Puerto Rico"), are five loving, committed same-sex couples who reside in Puerto Rico

INTRODUCTION

1. Plaintiffs, all residents of the Commonwealth of Puerto Rico ("Commonwealth" or "Puerto Rico"), are five loving, committed same-sex couples who reside in Puerto Rico ("Plaintiff Couples") and an organization that represents lesbian, gay, bisexual, transsexual and transgender ("LGBT") people and their families in their struggle for social inclusion, equality and fairness in Puerto Rico. Plaintiffs bring this action pursuant to 42 U.S.C. §§ 1983 and 1988 to challenge Defendants' discriminatory denial, pursuant to Puerto Rico's laws, of the freedom of the unmarried Plaintiff Couples and the unmarried LGBT members of Puerto Rico Para Todo@s to marry in the Commonwealth; and the discriminatory refusal to recognize marriages lawfully entered into in other jurisdictions by Plaintiff Couples and married LGBT people who are members of Puerto Rico Para Tod@s. Plaintiffs seek declaratory and injunctive relief for Defendants' violation of their guarantees of liberty and equality under the Fourteenth Amendment to the United States Constitution, caused by Defendants' interpretation and enforcement of Article 68 of the Civil Code of Puerto Rico, 31 L.P.R.A. § 221, and other laws in the Commonwealth that preclude Plaintiff Couples and LGBT people who are members of Puerto Rico Para Tod@s from marrying or having their marriages lawfully entered into in other jurisdictions recognized in Puerto Rico (hereinafter the Commonwealth's "Marriage Ban").

2. Through the Marriage Ban, the Commonwealth and Defendants send a message that LGBT people who wish to marry or to have marriages recognized but who are prevented from marrying or gaining recognition by the laws of Puerto Rico ("Banned Couples") and their children are second-class citizens, against whom discrimination is acceptable, and who are undeserving of the legal sanction, respect, protections, and support that the couples permitted to marry in Puerto Rico ("Accepted Couples") and their children receive automatically through marriage.

3. Marriage plays a unique role in society as a universally recognized and celebrated hallmark of a couple's commitment to build a family together. It confers upon couples a dignity and status of immense import. The Plaintiff Couples and LGBT members of Puerto Rico Para Tod@s have formed committed, enduring bonds equally worthy of the respect the Commonwealth affords Accepted Couples in Puerto Rico. Yet the Commonwealth, without adequate justification, has enacted, and Defendants have interpreted and enforced the

the children of the LGBT members of Puerto Rico Para Tod@s, without any compelling, important or even legitimate justification.

8. The Commonwealth also has deprived each individual in Plaintiff Couples and the LGBT members of Puerto Rico Para Tod@s of their guarantee of equality under the Equal Protection Clause of the Fourteenth Amendment of the United States Constitution by denying them the right to marry the person of their choice, based solely on their sexual orientation and/or sex. Likewise, Puerto Rico denies the children of Banned Couples equal access to the dignity, legitimacy, protections, benefits, support, and security conferred on children of Accepted Couples under Puerto Rico and federal law.

9. Our courts and our society have discarded, one by one, marriage laws that violate the United States Constitution's mandates of liberty and equality, including laws that banned marriage between members of different races and that relegated married women to property. Eliminating these unconstitutional marriage rules has allowed the institution of marriage to retain its relevance and to continue to nurture families. Eliminating laws that exclude LGBT people from marriage based on sexual orientation or sex, as has already occurred in at least nineteen states and the District of Columbia, is no different.

10. Because the freedom to marry is one of the vital personal rights central to the orderly pursuit of happiness, Plaintiffs seek equal access to the freedom to marry and equal recognition of their marriages entered into in other jurisdictions, and to eliminate the myriad serious harms inflicted on Plaintiffs and their families by the Marriage Ban and Defendants' enforcement of it.

7. Because the freedom to marry is one of the vital personal rights central to the orderly pursuit of happiness, Plaintiffs seek equal access to the freedom to marry and equal recognition of their marriages entered into in other jurisdictions and to eliminate the myriad serious harms inflicted on Plaintiffs and their families by the Marriage Ban and Defendants' enforcement of it.

JURISDICTION AND VENUE

11. Plaintiffs bring this action under 42 U.S.C. §§ 1983 and 1988 to redress the deprivation under color of state law of rights secured by the United States Constitution.

12. This Court has original jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331 and 1343 because the matters in controversy arise under the Constitution and laws of the United States.

13. Venue is proper in this Court under 28 U.S.C. § 1391(b) because all Defendants reside within the District of Puerto Rico, Defendants reside and have offices within the district, and/or a substantial part of the events that gave rise to Plaintiffs' claims occurred, and will continue to occur, within the District of Puerto Rico.

14. This Court has the authority to enter a declaratory judgment and to provide preliminary and permanent injunctive relief pursuant to Rules 57 and 65 of the Federal Rules of Civil Procedure and 28 U.S.C. §§ 2201 and 2202.

15. This Court has personal jurisdiction over Defendants because they are domiciled in the Commonwealth and/or have otherwise made and established contacts with the District sufficient to permit the exercise of personal jurisdiction over them.

PARTIES

A. Plaintiffs

Ada Mercedes Conde Vidal and Ivonne Álvarez Vélez

16. Plaintiffs Ada Mercedes Conde Vidal, 53, and Ivonne Álvarez Vélez, 67, are a same-sex couple residing in San Juan, Puerto Rico. They have been in a loving, committed relationship for more than fourteen years. Ada is an attorney, primarily practicing bankruptcy law, admitted in Puerto Rico and the United States District Court in Puerto Rico. Ivonne is an

Banned Couples from marriage based on sexual orientation and/or sex of the individuals in the couples subjects them to legal vulnerability and related stress, and deprives them of equal dignity and security. Through its Marriage Ban and Defendants' interpretation and application of it, the Commonwealth and Defendants send a purposeful message that the Commonwealth views LGBT people and their children as second-class members of society undeserving of the legal sanction, respect, and dignity Accepted Couples and their children enjoy.

STATEMENT OF FACTS

14. Plaintiff Couples all are residents of Puerto Rico who experience the same joys and shoulder the same challenges of family life as their neighbors, co-workers, and other community members who are free to marry. Plaintiff Couples include productive, contributing, tax-paying members of society who support their committed partners and nurture their children, but currently are forced to do so without the same dignity and respect afforded by the Commonwealth to other families through access to marriage. The Commonwealth's exclusion of Banned Couples from marriage based on sexual orientation and/or sex of the individuals in the couples subjects them to legal vulnerability and related stress, and deprives them of equal dignity and security. Through its Marriage Ban and Defendants' interpretation and application of it, the Commonwealth and Defendants send a purposeful message that the Commonwealth views LGBT people and their children as second-class members of society undeserving of the legal sanction, respect, and dignity Accepted Couples and their children enjoy.

15. But for the fact that they are barred by Puerto Rico's Marriage Ban, each member of the unmarried Plaintiff Couples is legally qualified to marry under the laws of Puerto Rico and wishes to marry their same-sex partner in Puerto Rico, and Plaintiff Couples legally married in other jurisdictions wish to have their marriages recognized in Puerto Rico.

16. Though they strongly desire to marry, neither of the unmarried Plaintiff Couples, Maritza López Avilés and Iris Delia Rivera Rivera, and Zulma Oliveras Vega and Yolanda Arroyo Pizarro, have applied for marriage licenses in Puerto Rico, because doing so is a crime under 33 L.P.R.A. § 4757 (misdemeanor to marry another person in a marriage prohibited by civil law).

17. Puerto Rico Para Tod@s has LGBT members who want to marry in Puerto Rico and who have married in other jurisdictions, but whose marriages the Commonwealth of Puerto Rico does not recognize because of the members' sexual orientation and/or sex.

A. Puerto Rico's Marriage Ban Singles Out LGBT People and Excludes Them From Marriage.

51. In 1997, the Commonwealth enacted a statute defining marriage as "a civil contract whereby a man and a woman mutually agree to become husband and wife." 31 L.P.R.A.

FIRST CLAIM FOR RELIEF

Deprivation of Due Process Rights to Marry (U.S. Const. Amend. XIV; 42 U.S.C. § 1983)

74. The Fourteenth Amendment to the United States Constitution, enforceable pursuant to 42 U.S.C. § 1983, bars the Commonwealth from depriving any person of life, liberty, or property without due process of law (the "Due Process Clause").

75. The right to marry the unique and irreplaceable person of one's choice and to direct the course of one's life in this intimate realm without undue government restriction is one of the fundamental liberty interests protected by the Due Process Clause. Indeed, the essence of the fundamental right to marry is freedom of personal choice in selecting one's spouse.

76. Puerto Rico's Civil Code, 31 L.P.R.A. § 221, and all other sources of Commonwealth law that preclude Banned Couples from marrying or prevent recognition of their marriages on the basis of their member's sexual orientation and/or sex violate the due process guarantee of the Fourteenth Amendment, both facially and as applied to Plaintiffs. Defendants' actions to enforce the Marriage Ban directly and impermissibly infringe on Plaintiffs' deeply intimate, personal, and private decisions regarding family life, and preclude them from obtaining full liberty, dignity, and security for themselves and their families.

77. The Due Process Clause also protects choices central to personal dignity and autonomy, including each individual's rights to family integrity and association. Defendants' actions to enforce the Marriage Ban directly and impermissibly infringe on Plaintiffs' choice of whom to marry, interfering with a core, life-altering, and intimate personal choice.

78. The duties and actions of Defendant García Padilla, as Governor of the Commonwealth of Puerto Rico; Defendant Rius, as Secretary of the Health Department; Defendant Elovet, as Director of the General Registry of Vital Statistics, to ensure compliance with Puerto Rico's discriminatory Marriage Ban by, for example, denying same-sex couples marriage licenses, violate Plaintiffs' fundamental right to marry and rights to liberty, dignity,

Defendant Lovet, as Director of the General Registry of Vital Statistics, to ensure compliance autonomy, family integrity, association, and due process contained in the Fourteenth Amendment with Puerto Rico's discriminatory Marriage Ban by, for example, denying same-sex couples to the United States Constitution.

marriage licenses, violate Plaintiffs' fundamental right to marry and rights to liberty, dignity,

79. The duties and actions of Defendant Acosta, as the Director of the Treasury, to autonomy, family integrity, association, and due process contained in the Fourteenth Amendment ensure compliance with the Commonwealth's discriminatory Marriage Ban by, for example, not to the United States Constitution.

allowing same-sex married couples to file joint Puerto Rico income tax returns, violate Plaintiffs'

25. The duties and actions of Defendant Acosta, as the Director of the Treasury, to fundamental right to marry and the rights to liberty, dignity, autonomy, family integrity, ensure compliance with the Commonwealth's discriminatory Marriage Ban by, for example, not association, and due process under the Fourteenth Amendment to the United States Constitution. allowing same-sex married couples to file joint Puerto Rico income tax returns, violate Plaintiffs'

fundamental right to marry and the rights to liberty, dignity, autonomy, family integrity,

80. Defendants cannot satisfy the Due Process Clause's decree that government's association, and due process under the Fourteenth Amendment to the United States Constitution. denial of a fundamental right or substantial infringement of a liberty interest may be sustained

26. Defendants cannot satisfy the Due Process Clause's decree that government's only upon a showing that the burden is narrowly tailored to serve a compelling or even important denial of a fundamental right or substantial infringement of a liberty interest may be sustained governmental interest, as the Marriage Ban is not even tailored to any legitimate interest at all. only upon a showing that the burden is narrowly tailored to serve a compelling or even important

81. Thus, Defendants, acting under color of state law, are depriving Plaintiffs of rights governmental interest, as the Marriage Ban is not even tailored to any legitimate interest at all

27. Thus, Defendants, acting under color of state law, are depriving Plaintiffs of rights secured by the Due Process Clause of the Fourteenth Amendment to the United States secured by the Due Process Clause of the Fourteenth Amendment to the United States Constitution in violation of 42 U.S.C. § 1983.

Constitution in violation of 42 U.S.C. § 1983.

SECOND CLAIM FOR RELIEF

SECOND CLAIM FOR RELIEF

Deprivation of Equal Protection on the Basis of Sexual Orientation and/or Sex

Deprivation of Equal Protection on the Basis of Sexual Orientation and/or Sex (U.S. Const. Amend. XIV; 42 U.S.C. § 1983)

U.S. Const. Amend. XIV (42 U.S.C. § 1983)

28. Plaintiffs incorporate by reference and reallege all of the preceding paragraphs of

82. Plaintiffs incorporate by reference and reallege all of the preceding paragraphs of this amended complaint as though fully set forth herein.

this amended complaint as though fully set forth herein.

29. Plaintiffs state this cause of action against Defendants in their official capacities

83. Plaintiffs state this cause of action against Defendants in their official capacities for purposes of seeking declaratory and injunctive relief.

for purposes of seeking declaratory and injunctive relief.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully request that this Court enter judgment as follows:

A. Declaring that the provisions and enforcement by Defendants of Article 68 of the Civil Code of Puerto Rico, 31 L.P.R.A. § 221, and any other sources of Puerto Rico law or regulation that exclude LGBT couples from marriage or bar recognition of valid marriages of LGBT people entered into in another jurisdiction violate Plaintiffs' rights under the Due Process Clause and Equal Protection Clause of the Fourteenth Amendment to the United States Constitution;

B. Enjoining enforcement by Defendants of Article 68 of the Civil Code of Puerto Rico, 31 L.P.R.A. § 221, and any other sources of Puerto Rico law or regulation that exclude LGBT couples from marriage or bar recognition of valid marriages of LGBT people entered in other jurisdictions;

C. Requiring Defendants, in their official capacities, to allow Banned Couples to marry on the same terms as Accepted Couples and to recognize the valid marriages of LGBT people entered into in other jurisdictions on the same legal terms as other marriages recognized in Puerto Rico;

D. Awarding Plaintiffs their costs, expenses, and reasonable attorneys' fees pursuant to 42 U.S.C. § 1988 and other applicable laws; and

E. Granting such other and further relief as the Court deems just and proper.

The declaratory and injunctive relief requested in this action is sought against each Defendant; each Defendant's officers, employees, and agents; and against all persons acting in cooperation with any Defendant or under a Defendant's supervision, direction, or control.

Dated: June 25, 2014

By: s/ *Ada Mercedes Conde Vidal*

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Respectfully submitted,

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